

The State of Florida v Fortune Ferguson, Jr: the death penalty and legal change in Florida, 1924–1927

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ABSTRACT

This article uses the case of Fortune Ferguson, Jr to explore the creation and effects of the creation of a centralized justice system in Florida in the 1920s. This involved a 16-year-old Black teenager accused, convicted, and executed for rape in Florida in the mid-1920s. This represented the first person sentenced to die in the newly created electric chair in Florida's state prison. The shift to the electric chair and state-run executions reflected a larger move by the legislature to remove criminal justice processes from the decentralized system that existed prior to 1923. This system vested significant authority in the community, local officials, and private contractors. But that system came under significant strain by the 1910s and 1920s. The shift to the electric chair and state executions emerged out of the larger critiques of the decentralized justice system. As such, this case reflects an effort to establish the authority of the new centralized system, as it was one of the first cases to be tried in it. The transition to state-run private executions was not as disadvantageous to local officials as scholars have suggested. Instead of framing the centralization of criminal justice processes as a competition between state and local criminal justice actors, the case of Fortune Ferguson provides insight into the collaborative efforts that occurred between state and local officials that augmented the authority of formal agents of criminal justice at both the state and local levels.

At 2:30 p.m. on 27 April 1927, the state of Florida carried out the death sentence for Fortune Ferguson, Jr, an 18-year-old African American from Alachua, Florida. That a state from the former Confederacy, with a history of racial discrimination and violence against African Americans, and one that was firmly ensconced in the Jim Crow era, executed a Black person is not all that surprising. In fact, between 1890 and 1965, the state of Florida executed 194 African Americans convicted of murder, rape, or robbery.¹

¹ This was out of a total of 277 people executed in Florida from 1890 to 1965. Data came from the ESPY File. See 'Executions in the US 1608–2002: The Espy File' Death Penalty Information Center, accessed 16 October 2023. <<https://deathpenaltyinfo.org/executions/executions-overview/executions-in-the-u-s-1608-2002-the-espy-file>>

Yet, the execution of Fortune represented an important moment of legal change in Florida. Ferguson was the first person sentenced to death by the electric chair in the state. Across the South, state and local officials enacted a series of criminal justice reforms during the late nineteenth and early twentieth centuries designed to bring modern and industrial technologies and expertise, like electricity, into the operation of criminal justice, specifically state executions. Doing so, proponents argued, would create a more humane and civilized execution apparatus.² The Florida legislature approved the introduction of the electric chair in 1923 as part of this larger movement.

In addition to changing the method of execution, this reform also introduced centralized, state-run executions into the state of Florida for the first time. This moved executions out of the hands of local authorities and away from local crowds and into a central execution chamber operated by state actors before an audience of a few select individuals. This shift was one facet of a much larger process of converting the decentralized system of criminal justice that had operated in the state and across the South, throughout the late nineteenth and early twentieth centuries, into something more centralized and state controlled. In this decentralized system, the locus of power centred on the community, whether it was the county sheriff, county judge, convict-leasing camps run by private contractors, or lynch mobs. By the 1910s and 1920s, state legislatures across the South sought to centralize the system of criminal justice by expanding the role of state officials and bureaucrats and limiting the power of the community. This included a number of changes, such as ending the convict-leasing system and public executions, taking measures to stop lynchings, building state prisons, forming state police departments, and adopting state-run executions.

Historians of the criminal justice system have argued that this shift away from local public executions to state-run private executions represented a fundamental shift in the locus of authority away from local criminal justice officials, namely the sheriff, and to state-level officials who assumed the responsibilities of executions.³ While this shift occurred, as the case of Fortune Ferguson demonstrates, the transition to state-run private executions was not as disadvantageous to local officials as scholars have suggested. Instead of framing the centralization of criminal justice processes as a competition between state and local criminal justice actors, the case of Fortune Ferguson provides insight into the *collaborative efforts* that occurred between state and local officials that augmented the authority of formal agents of criminal justice at both the state and local levels.⁴ By wresting authority away from non-criminal justice system personnel, like private contractors and community members, the supremacy of the formal system of justice and the actors that supported it, such as county sheriffs, local attorneys, and state judges, expanded as a result.

The decentralized system that created and upheld white supremacy in the South was becoming untenable by the early twentieth century. In order to preserve the racial inequities of

² Vivien Miller, 'Hanging, the Electric Chair, and Death Penalty Reform in the Early Twentieth-Century South' in Amy Louise Wood and Natalie J Ring (eds), *Crime and Punishment in the Jim Crow South* (University of Illinois Press, Urbana 2019) 171.

³ Michael Ayers Trotti, *The End of Public Execution: Race, Religion & Punishment in the American South* (University of North Carolina Press, Chapel Hill 2022) 128; Seth Kotch, *Lethal State: A History of the Death Penalty in North Carolina* (University of North Carolina Press, Chapel Hill 2019) 19, 66.

⁴ Recent scholarship has emphasized the growing significance of formal institutions of criminal justice in the Jim Crow South, especially at the local level. Much of this work has largely focused on expansion of police departments in the early twentieth century. See, for examples, Amy Louise Wood and Natalie J Ring (eds), *Crime & Punishment in the Jim Crow South* (UP of Illinois, Urbana 2019); Brandon T Jett, *Race, Crime, and Policing in the Jim Crow South: African Americans and Law Enforcement in Birmingham, Memphis, and New Orleans, 1920–1945* (Louisiana State UP, Baton Rouge 2021); Jeffrey S Adler, *Murder in New Orleans: The Creation of Jim Crow Policing* (University of Chicago Press, Chicago 2019); Jeffrey S Adler, *Blue-Coated Terror: Jim Crow New Orleans and the Roots of Modern Police Brutality* (University of California Press, Berkeley 2024); Silvan Niedermeier, *The Color of the Third Degree: Racism, Police Torture, and Civil Rights in the American South, 1930–1955*, tr Paul Cohen (University of North Carolina Press, Chapel Hill 2019).

the Jim Crow system, southern legislatures and criminal justice officials engaged in what legal scholar Reva Siegal has defined as 'preservation through transformation'.⁵ As the case of Fortune Ferguson illustrates, local and state authorities demonstrated that the newly centralized criminal justice apparatus could continue to reinforce and perpetuate white supremacy in the Jim Crow South without the criticisms of the old system.⁶ In so doing, these local and state justice officials further cemented their role as arbiters of justice and, by extension, white supremacy, at a time when the old system of decentralized criminal justice became increasingly difficult to justify and support. In response, progressive changes, such as state-run executions, proved necessary to preserve the racial inequities that abounded in the Jim Crow system that the decentralized justice system helped create.

LEGAL CHANGES IN THE NEW SOUTH

The shift from hanging to electrocution as the preferred method of state executions represented a fundamental shift in the nature of criminal justice in Florida: from a largely decentralized system to one with the state at the centre of operations. Similar to many former Confederate states in the late nineteenth and early twentieth centuries, Florida's criminal justice system relied upon myriad local actors, including local criminal justice officials, the community as a whole in the form of extralegal justice, and private contractors who operated convict-lease schemes.⁷ This decentralized system of criminal justice provided opportunities for southern white communities to wrest control over their affairs following the expansion of the federal government during Reconstruction, facilitated the industrialization of the state, and cemented white supremacy during the late nineteenth century.⁸ By the late 1910s, however, this system was under intense pressure and scrutiny from the public for its many shortcomings, particularly a lack of effectiveness in terms of suppressing criminal tendencies, rampant fraud, and grotesque violence. In response, the state of Florida embraced a centralized approach to criminal justice that ended convict-leasing, inserted state officials into the execution process, changed the mode of execution, and constructed a state prison to house the new electric chair.

Lynchings and other forms of extralegal violence lay at the centre of the critiques of Florida's and the South's criminal justice system in the early twentieth century. White Floridians engaged in 331 documented cases of lynching with African American victims between 1877 and 1950. Throughout the Jim Crow era, white southerners often justified lynchings as a necessary response to the alleged predatory sexuality of Black men. Southern mobs hanged, shot, dragged, and burned Black men alive as part of a racial terror campaign that secured and perpetuated white supremacy following the collapse of slavery and Reconstruction.⁹ As historian Michael J. Pfeifer articulated, white lynch mobs embraced a

⁵ Reva Siegal, 'Why Equal Protection No Longer Protects: The Evolving Forms of Status-Enforcing State Action' (1997) 49 *Stan L Rev* 1111, 1111–48.

⁶ Miller (n 3) 184.

⁷ Edward L Ayers, *Vengeance & Justice: Crime and Punishment in the 19th-Century American South* (OUP, Oxford 1984) 185–265.

⁸ Douglas A Blackmon, *Slavery by Another Name: The Re-Enslavement of Black Americans from the Civil War to World War II* (Anchor Books, New York 2008) 173–75, 339–41, 366–67; Alex Lichtenstein, *Twice the Work of Free Labor: The Political Economy of Convict Labor in the New South* (Verso Books, New York 1996); E Carson Eckhard, 'Ragged Battalions, Plotting Liberty: Convict Leasing and the Construction of Carceral Capitalism in Florida, 1875–1925' (Undergraduate honours thesis, University of Pennsylvania 2021).

⁹ Ida B Wells, *Southern Horrors and Other Writings: The Anti-Lynching Campaign of Ida B. Wells, 1892–1900* (Bedford/St Martin's, New York 1997); W Fitzhugh Brundage, *Lynching in the New South: Georgia and Virginia, 1880–1930* (University of Illinois Press, Urbana 1993) 61–71; Jacquelyn Dowd Hall, *Revolt Against Chivalry: Jessie Daniel Ames and the Women's Campaign Against Lynching* (Columbia UP, New York 1979). Rape accusations proved to be one of the main causes of lynchings in the American South, especially between 1890 and 1930. Black men accused of sexually assaulting white women accounted for nearly one-third of all African Americans lynched in Florida during that time period. According to Marvin

'style of criminal justice' that was 'lodged in the community ... administered face-to-face with a measure of retribution that matched the offense, and it sought to ... uphold the hierarchical prerogatives of the dominant residents of the locality'.¹⁰ By the 1920s, critiques of lynchings and the systems that seemingly did little to combat them drew the ire of anti-lynching advocates at the local, state, regional, national, and international levels.¹¹

One viable alternative to rough justice, critics suggested, was due process through formal institutions of criminal justice.¹² Yet, the formal criminal justice system that existed in Florida at the turn of the century was a far cry from the panacea that opponents of rough justice needed it to be. This system was largely decentralized with limited oversight from the state. Sheriffs and county judges collaborated with, or worked at the behest of, private contractors to exploit those caught up in the criminal justice system through the convict-lease schemes. Here, too, criticisms abounded. Accusations of fraud ran rampant. Exposés and government reports decried the horrific conditions in the work camps and often highlighted the brutal treatment of those forced to work to pay off their debts.¹³

Even public hangings, the bedrock example of the power of the criminal justice system to punish offenders, proved difficult to support by the 1910s. While public hangings were supposed to instil a sense of fear in would-be criminals and awe for the majesty of local officials from the general public, for capital crimes, like murder and rape, the system also seemed to be falling short. Between 1824 and 1923, Florida executed people via hangings carried out by local officials in the counties where crimes were committed. During this era, county sheriffs determined how public these executions would be as they constructed and positioned the gallows and controlled the number of people who would be allowed to witness the execution. According to Vivien Miller, sheriffs 'determined whether private execution laws were wholly, partially, or barely complied with'.¹⁴ These public displays of state authority played important roles in American social and political history.¹⁵ According to historian Louis P. Masur:

the design of execution day ... [was] a spectacle of civil and religious order, as a performance directed by magistrates and ministers and involving the condemned themselves. The spectators who gathered by the gallows participated in an exhibition that served as warning and celebration, as both a deterrent to potential subvertors of republican and Christian values and a representation of communal identity and individual salvation.¹⁶

Public hangings were supposed to instil in the community a discipline and awe for the power of the state to exact punishment against repentant criminals, and, in the post-Emancipation South, criminality became largely associated with Blackness.¹⁷

Dunn, there were 66 African Americans lynched for attempted rape, assisting in a rape, or rape out of 205 total Black lynch mob victims between 1890 and 1930. See Marvin Dunn, *The Beast in Florida: A History of Anti-Black Violence* (UP of Florida, Gainesville 2013) 189–206.

¹⁰ Michael J Pfeifer, *Rough Justice: Lynching and American Society, 1874–1947* (University of Illinois Press, Urbana 2006), 3.

¹¹ *ibid*; Brundage (n 10); Stewart E Tolnay and EM Beck, *A Festival of Violence: An Analysis of Southern Lynchings, 1882–1930* (University of Illinois Press, Urbana 1995); Amy Louise Wood, *Lynching and Spectacle: Witnessing Racial Violence in America, 1890–1940* (University of North Carolina Press, Chapel Hill 2009); Tameka Bradley Hobbs, *Democracy Abroad, Lynching at Home: Racial Violence in Florida* (UP of Florida, Gainesville 2015).

¹² Pfeifer (n 11) 3–4.

¹³ For more on the convict-lease system, see Lichtenstein (n 9); Blackmon (n 9).

¹⁴ Miller (n 3) 173.

¹⁵ Louis P Masur, *Rites of Execution: Capital Punishment and the Transformation of American Culture, 1776–1865* (OUP, Oxford 1989) 5–6.

¹⁶ *ibid* 5–6.

¹⁷ Khalil Gibran Muhammad, *The Condemnation of Blackness: Race, Crime, and the Making of Modern Urban America* (Harvard University Press, Cambridge 2010).

By the 1920s, however, public executions in Florida became increasingly chaotic and expensive. Public hangings became massive public events in these communities. In one extreme example, a reported 10,000 people showed up at Crestview, Florida, to witness the execution of two white murderers in 1921. In order to manage the sizeable crowds that tended to show up for public executions, local officials and law enforcement expended massive amounts of manpower and money. In Okaloosa County, for instance, local authorities spent \$75,000 between 1920 and 1921 to conduct three public hangings. By the 1920s, public hangings seemed to be losing effectiveness in instilling the majesty of the law in communities and were becoming a financial burden to carry out.¹⁸

The killing of a white man from North Dakota, Martin Talbert, only reinforced the growing concerns over the shortcomings of the criminal justice system. Leon County deputies arrested Talbert in December 1921, and the Leon County court convicted him in December 1921 for illegally riding on a freight train. After his family failed to pay his fine in the required 48 hours, he was sent to work for the Putnam Lumber Company in Dixie County. A month later, Talbert died at the camp following a beating of more than 50 lashes. This sparked outrage from across the country, and the Florida legislature launched a full-scale investigation. The results of said investigation were damning and highlighted the violence, squalor, and fraud at the heart of Florida's convict-lease system.¹⁹

Floridians grew increasingly concerned that the formal criminal justice system created in the late nineteenth century fell short of its promises and wanted changes. A 1923 survey conducted by the General Extension Division of the University of Florida found that the majority of 'prominent citizens' were roundly opposed to the continuation of public hangings. In fact, 93 per cent of businessmen, 94 per cent of lawyers, 87 per cent of newspaper men, 87 per cent of educators, 100 per cent of women, and 70 per cent of county sheriffs surveyed all came out in opposition to the continuation of public hangings.²⁰

The state legislature's solution to these critiques was to increase state control over criminal justice processes. Sweeping changes came from the legislature in 1923, including an end to the convict-lease system and whipping as a punishment for convicts. Moreover, the state introduced limits on other forms of punishment and 'stringent inspections' of camps, county jails, convicts, and guards throughout the system.²¹ To top it all off, Representative R.H. Weaver introduced a bill to shift to the electric chair in the House, and Senator W.W. Phillips introduced a companion bill in the Senate. These proposed bills did more than simply change the mode of execution; they also changed the location. Executions would no longer be held in the counties where the condemned were convicted, but instead would take place at the state prison at Raiford. The bill passed with a 43:15 vote in the House and a 21:9 vote in the Senate.²²

Support for the end of public hanging and the convict-lease system was widespread. Several women's organizations supported an end to public hanging and the new electric chair. The Florida Legislative Council, comprised of the state-wide women's groups including the Florida Federation of Women's Clubs, the Florida League of Women Voters, the Florida Audubon Society, the Congress of Mothers and Parent Teachers Association, and

¹⁸ Miller (n 3) 177.

¹⁹ VML Miller, 'The Icelandic Man Cometh: North Dakota State Attorney Gudmunder Grimson and a Reassessment of the Martin Tabert Case' (2003) 81 *Florida Hist Q* 279–315; Jerrell H Shofner, 'Postscript to the Martin Tabert Case: Peonage as Usual in the Florida Turpentine Camps' (1981) 60 *Florida Hist Q* 161–73.

²⁰ 'These Two Systems are Out of Date in Florida' *Tallahassee Democrat* (13 April 1923).

²¹ 'Penal Reform' *Daily Sun* (Gainesville, 30 January 1924).

²² Miller (n 3) 170–91.

the Women's Christian Temperance Union, was at the forefront of the effort. Their stated mission was to 'promote legislation in the interests of women and children', and they issued strong support in 1923 for 'substituting the Electric Chair and Electrocutation for Hanging, where the death penalty is imposed by the Courts of Florida as Capital Punishment'.²³

The Florida Sheriffs Association also backed the end of public executions and the adoption of the electric chair. Established in 1893 in order to provide benefits to individual sheriffs and their offices across the state and to give them collective influence at the state level, the Florida Sheriffs Association, according to historians James M. Denham and William Warren Rogers, 'rose to a level of permanent influence and prominence in Florida' by the 1920s.²⁴ Mirroring sheriffs in other southern states, throughout the 1910s, this organization lobbied for an end to the convict-lease system, an end to public hanging, and promoted the adoption of the electric chair.²⁵ In the 1923 annual meeting of the organization, reports claimed that 'very generally supported the use of the electric chair' with only one sheriff opposing the transition. Reflective of the larger belief among many advocates of public hangings, he stated, 'It would never satisfy the Crackers in my part of the state. They want to see a man, white or black, who has committed a heinous [*sic*] crime hang, and substituting electrocution, as it is believed to be a more humane method of execution wouldn't satisfy them.'²⁶

With support from various corners of the state, the 1923 legislative session ended with the creation of an updated and more centralized criminal justice system. This shift came in response to myriad critiques of the old, more decentralized justice system that had been in operation for decades. The adoption of the centralized system, however, was not universal as critics of the centralized system continued to demonstrate their belief in a communal sense of justice, most visibly by the continued threats of lynchings throughout the Jim Crow era.²⁷ While the change came from the state, it was not without broad support from local justice officials, including county sheriffs and local lawyers. This shift, then, should be recognized as a collaborative effort from state and local officials to solidify their roles as the arbiters of a more modern and effective justice system.²⁸

THE CASE AGAINST FORTUNE FERGUSON, JR

Several months after the legislature passed the electric chair bill, Fortune Ferguson, Jr was arrested by Alachua County Sheriff's deputies. From the initial accusation to conviction, the case against Ferguson unfolded in a matter of weeks. The accusation, arrest, and trial provide a look into the operation of the nascent centralized criminal justice system that emerged across the South in the early twentieth century in response to mounting criticism of the South's decentralized approach to criminal justice. The period of state consolidation of criminal justice operations in the 1920s, specifically the shift away from local executions to

²³ 'The Legislative Program of Measures Adopted by the Florida Legislative Council to be Presented to the 1923 Session of the Legislature' and 'Constitution & By-Laws Florida Legislative Council' *Fla Legislative Council Constitution, by-laws, minutes, 1922-1924*, Florida Legislative Council Ledger, Special and Area Studies Collections, University of Florida Smathers Libraries, Gainesville, FL.

²⁴ William Warren Rogers and James M Denham, *Florida Sheriffs: A History, 1821-1945* (Sentry Press, Tallahassee 2001) 178-79, 210.

²⁵ *ibid* 184-87, 202; Kotch (n 4) 19.

²⁶ 'A Florida Cracker' *Daily Sun* (Gainesville, 7 March 1923).

²⁷ Lynchings declined significantly throughout the twentieth century, but white mobs continued to use the threat of extra-legal violence to terrorize Black communities throughout the Jim Crow era. Lynchings, although reduced in overall number, also continued throughout the South. For more on lynching in Florida, see Dunn (n 11).

²⁸ Miller (n 3) 170-91.

centralized, state-run executions, led to an expanded role for the state that came at the expense of local criminal justice officials, who, scholars have argued, ceded their authority to state actors.²⁹ Cases such as Fortune Ferguson's provided opportunities for sheriffs, judges, and prosecutors to demonstrate their roles as arbiters of justice from the point of arrest to the point of sentencing in the new centralized system of justice that the state created. An in-depth look at the trial and court case illustrates how local actors continued to exercise influence and authority even after the state centralized the justice system. This was a symbiotic relationship. The new centralized system solidified the role of all criminal justice officials across the system.

Central to this collaborative augmentation of authority was the visible opposition to extralegal violence. From the moment of the initial rape accusation against Fortune Ferguson, Jr, threats of lynching emerged. Despite the centralization of the justice system, extralegal actions like lynching remained a part of some white southerners' general concept of potential punishments for alleged offences committed by African Americans. Yet, Ferguson was not lynched. This was no coincidence. Legal authorities engaged in myriad efforts to thwart the lynching threat. From the decisions authorities made during the arrest and build-up to a trial to the sentencing, opposition to extralegal violence shaped how law enforcement officials, judges, and attorneys conducted themselves throughout the legal processes before, during, and after the trial. When placed in the context of the conflict between proponents of decentralized and centralized justice systems, these efforts allowed local and state criminal justice officials to showcase their command over the punishment of suspected criminals as part of the new justice system.³⁰

The events at the centre of the state's case against Fortune Ferguson occurred in the small rural town of Alachua, Florida. Alachua sits in north central Florida, about 16 miles north-west of Gainesville and 72 miles south-west of Jacksonville. Like many rural towns in the 'New South', Alachua underwent transformation during the late nineteenth and early twentieth centuries. The town did not really exist until 1884, when the Savannah, Florida, and Western Railroad constructed a rail line that went through the area where Alachua would eventually be founded. As a result, people moved their businesses and formed a new town, Alachua. In 1905, the City of Alachua was officially incorporated and had a population of 526. By 1915, the town boasted three hotels, two banks, a 'large, well-stocked department store', and several manufacturing sites, including an ice plant, electric light plant, waterworks, two cotton gins, two grist mills, and bottling works. The population of the town doubled in two decades and reached 1100 by 1925.³¹ This kind of development and growth was a hallmark of Florida as a whole, as development ushered in a period of unprecedented growth in the state that saw its population expand at twice the rate of the United States as a whole in the late nineteenth and early twentieth centuries.³²

For all of the growth and economic development, Alachua and the rest of Florida remained mired in racist ideologies and a commitment to white supremacy.³³ Alachua County ranked third in the state for the number of lynching of African Americans and

²⁹ Trotti (n 4) 152–60; Kotch (n 4) 64–67.

³⁰ David Owen and Tracy B Strong, 'Introduction' *Max Weber: The Vocation Lectures*, tr Rodney Livingstone (Hackett 2004).

³¹ 'Alachua's Story' (*City of Alachua: The Good Life Community*) <<https://www.cityofalachua.com/discover/about-alachua/history>> accessed 16 October 2023. This was part of the larger growth and development across the entire state of Florida throughout the late nineteenth and early twentieth centuries. Thomas Graham, 'The First Developers' in Michael Gannon (ed), *The History of Florida* (UP of Florida, Gainesville 2013) 276–95.

³² Graham (n 32) 276.

³³ Equal Justice Initiative, *Lynching in America: Confronting the Legacy of Racial Terror* (Equal Justice Initiative, Montgomery 2015) 40.

nineteenth among all counties in the country, with 31 victims.³⁴ Mirroring patterns in other largely agricultural and extractive counties in the South, Alachua County whites, who depended economically on cotton and citrus farming and phosphate mining, utilized racial violence as a means of controlling, subordinating, and dominating the Black population.³⁵ Around the turn of the century, in ways that mirrored developments in other southern states, Florida's legislature passed a series of laws that established segregated public spaces, banned interracial marriages, and passed discriminatory voting restrictions that largely barred African Americans from exercising their constitutional right to vote. This was part of a much broader trend in the South whereby state and local policymakers and authorities established a racial hierarchy through legal mechanisms and state institutions that became known collectively as Jim Crow during the late nineteenth and early twentieth centuries.³⁶ This legal hierarchy was constantly reinforced by the threat of violence, expulsions of entire Black communities, and targeted attacks on Black activists.³⁷

Similar to the hundreds of lynchings that occurred across the country, the case of Fortune Ferguson began with an accusation of sexual assault. This makes the case particularly useful for exploring the process of local officials showcasing their capacity to operate effectively against the forces of decentralization because it was one of the first capital cases tried after the shift. According to court documents, the alleged assault occurred on Wednesday, 4 June 1924, and the alleged victim was an 8-year-old white girl named Louise Patterson. She later testified that there was nothing all that extraordinary, at least not initially, about that day. Her family recently settled on a farming plot about 4 miles outside of the town of Alachua. Late in the afternoon, Louise Patterson remained at the family home while her parents were out in the fields putting out potato slips, a rooted sprout of the potato. While her family worked in the fields, Louise usually sold drinks, food, and candy from a small shop that her parents operated from their home. Apparently, Ferguson and Patterson had developed a kind of surface-level relationship through these interactions, as Ferguson was a frequent customer.³⁸ This was the context within which the alleged assault occurred. According to Patterson, Ferguson drove up to her home on 4 June, as he had multiple times before, and wanted to buy something to drink. On this occasion, however, she claimed he raped her.³⁹

Considering the seriousness of the rape accusation levelled against Fortune Ferguson, local authorities deployed tactics utilized across the South designed to fend off the mob impulse long enough to allow due process to take its course. By the time of the accusation, the number of recorded lynchings in the state and around the South had declined substantially from the peak in the 1890s. While economic pressures and changes in production of cotton along with criticism of southern society for its embrace and defence of lynching played an important role in the drastic decline, state and local officials exerted more effort to discourage mob violence and demonstrate their capacity to carry out punishments for alleged offences in ways that the white public deemed satisfactory as part of the shift towards a more centralized criminal justice apparatus. Quickly moving suspects out of the community where the alleged offence occurred and assuring the white public of a speedy trial proved one of

³⁴ *ibid* 43–44; Dunn (n 11) 17–19.

³⁵ 'Alachua County History' (Alachua County, Florida, Alachua County Government) <<https://alachuacounty.us/Govt/pages/alachuacountyhistory.aspx>> accessed 3 October 2024; Stewart Tolnay and Beck (n 12); Dunn (n 11).

³⁶ Michael Gannon (ed), *The History of Florida* (UP of Florida, Gainesville 2013) 309, 453–54, 464.

³⁷ Paul Ortiz, *Emancipation Betrayed: The Hidden History of Black Organizing and White Violence in Florida from Reconstruction to the Bloody Election of 1920* (University of California Press, Berkeley 2005).

³⁸ *Fortune Ferguson v State of Florida*, Florida Supreme Court Records, Series 49: Case Files, 1825–2013, Box 15, Folder 11, State Archives of Florida, Tallahassee, FL.

³⁹ *ibid*.

the favourite tactics.⁴⁰ Following the rape accusation against Ferguson, the legal case against him proceeded speedily. There is little left in the historical record explaining when and how he was arrested. However, the *Gainesville Daily Sun* reported that there was 'quite a bit of excitement when Ferguson was arrested and spirited away from the scene by sheriff's deputies'.⁴¹ This language indicated that there were threats of lynching made against Ferguson or that law enforcement believed it to be a possibility. After his arrest, the Alachua County Sheriff Perry Gilbert Ramsey placed him in jail in Gainesville, some 15 miles away from the town where the assault allegedly occurred. By quickly taking him into custody and moving the suspect to the county jail, threats of lynching came to naught. However, lynching threats persisted throughout the legal process. Once in jail, 'several attempts to lynch [Ferguson] were frustrated by the sheriff and his deputies' before the trial.⁴² By mitigating these threats, local criminal justice officials continuously reinforced their dominion over criminal justice matters.

Throughout the arrest, sheriffs demonstrated their superiority over the justice processes, capital criminal trials such as Ferguson's became venues to showcase the state and local collaborations in the new centralized justice system. This was part of a broader process across the state in the 1920s by local officials to 'enforce the laws' and combat extralegal violence. Failure to do so often resulted in calls for the state through the governor's office to dispatch the National Guard and to remove or prosecute negligent local officials.⁴³ Courtrooms were filled with local spectators who watched local attorneys and jurors operate in conjunction with state prosecutors and judges to secure justice that was deemed suitable to the wider public. In interracial rape cases in particular, these white state and local actors, as Lisa Lindquist Dorr argued, used court cases to act 'out their role as the protectors of white women'.⁴⁴

The trial of Fortune Ferguson provides a look into what those roles were and how each participant attempted to live up to those expectations for the white public. The state prosecutor allowed the white victim and her family the opportunity to tell their version of events to a supportive white audience.⁴⁵ On the other hand, the court-appointed local defence attorney raised a few objections but provided little in the form of a defence for the accused Black teenager. Meanwhile, the county sheriff maintained order inside and outside of the courtroom to prevent any potential threats of violence. The locally impanelled jury returned the expected verdict, while the state judge issued the expected sentence quickly. Throughout it all, cases like Ferguson's provided venues for state and local justice actors to demonstrate their control of the justice process that ultimately helped establish the superiority of the due-process approach in the centralized justice system. This system, these justice officials demonstrated through trials like Ferguson's, could deliver satisfactory results that upheld the basic communal expectations of punishment in interracial rape cases, without the communal violence, and accompanying criticism, of a lynching.⁴⁶

After his arrest, the legal process proceeded quickly. By Monday, 9 June, Ferguson was indicted on charges of criminal assault in Judge A.V. Long's Eighth Judicial Circuit Court. Judge Long was born in Lake City, Florida (30 miles north of Alachua) and graduated

⁴⁰ Arthur F Raper, *Tragedy of Lynching* (University of North Carolina Press, Chapel Hill 1933) 443–67.

⁴¹ 'Negro Convicted of Assault Is to Die' *Daily Sun* (Gainesville, 25 June 1926).

⁴² 'First Electric Chair Victim to Die September 25' *Orlando Sentinel* (16 September 1924); 'New System of Execution to Be Tried on Negro' *Anniston Star* (Anniston, AL, 20 September 1924).

⁴³ Jerrell H Shofner, 'Judge Herbert Rider and the Lynching at LaBelle' (1981) *Florida Hist Q* 292, 294–96, 300–06.

⁴⁴ Lisa Lindquist Dorr, *White Women, Rape, and the Power of Race in Virginia, 1900–1960* (University of North Carolina Press, Chapel Hill 2004) 5.

⁴⁵ *ibid* 5.

⁴⁶ *ibid* 10.

from the Florida Agricultural College (now the University of Florida) in Gainesville.⁴⁷ Although Long was a state-appointed judge, he was known locally as a man with ‘character, guts, good knowledge of law, experience on the bench ... is in touch with our traditions’.⁴⁸ J.C. Adkins, the State Attorney for the Eighth Judicial District, represented the state’s case. Adkins also had strong ties to Alachua County, representing the county in the Florida House of Representatives in the 1910s and as the mayor of Gainesville from 1921 to 1922 before winning election to become the State Attorney in 1922. The court appointed a local attorney named Robert W. Davis to defend Ferguson. Davis, who was often addressed with the honorary title of Colonel, came from a widely respected local family who was at separate times elected as tax/revenue assessor and a justice of the peace.⁴⁹ While many of the legal authorities in this case represented the state, these were not outsiders. Instead, these state officials had deep connections to the area and were respected by many in the community.

Two days later, at his arraignment, Ferguson entered a plea of ‘not guilty’ before the Alachua County court. On 16 June, 12 days after the alleged incident, the case against Fortune Ferguson went to trial.

During the trial, the prosecutor needed to prove ‘five elements ... beyond a reasonable doubt: the act was illicit; carnal knowledge or sexual intercourse had taken place; the victim was female (and not married to the accused); force was used; and the act was against the victim’s will’.⁵⁰ Eight-year-old Louise Patterson was the first, and perhaps most consequential, witness. At the request of the defence attorney, the court asked Patterson a few ‘test’ questions, including her name, age, where she lived, what grade she was in, and whether her parents took her to church. The last test question was of particular importance for the court. The judge asked if she knew what would happen if she did not tell the truth. The young girl replied, ‘I would go to the bad man’. The court reaffirmed that she meant she would not go to heaven if she told a lie.⁵¹

Satisfied with her ‘test’ responses, the direct questioning of Patterson began. The prosecution wasted little time in getting to the point and asked Patterson to recollect on the events of 4 June. She recounted that she was home alone while her parents planted potatoes in the field. When asked if she knew the defendant, she replied affirmatively and identified him by his nickname, Jew.⁵² She explained to the jury that she knew him fairly well because ‘he would come to buy candies and drinks sometimes; and then he wanted to trade me a nice calf for Rover. I got a little dog named Rover, and he promised us a little calf for Rover, and he kept telling us about it.’ The prosecution then asked her to explain what happened on the day of the alleged assault. She recalled how Ferguson came to the store and asked for a drink. He then asked her to go and look at his car with him. At that point, according to Patterson, she ‘knew he was in for something and so I would not go around there’. At that point, she claimed that Ferguson ‘went and carried [her] around there’ and assaulted her.

⁴⁷ ‘Long, Augustus V’ (*Biographical Directory of Federal Judges*) <<https://www.fjc.gov/node/1383991>> accessed 19 December 2024.

⁴⁸ Letter to James B Hodges, 22 December 1927, Folder: Judge A V Long 1927–34, Box 28, James B Hodges Collection, Special and Area Studies Collections, George A Smathers Libraries, University of Florida, Gainesville, Florida.

⁴⁹ ‘Personals’ *Gainesville Sun* (21 December 1927); ‘Directory of Elected and Appointed Officials in Alachua County, 1870–1969’ (*Florida Memory Project*) <<https://www.floridamemory.com/items/show/346871>> accessed 19 December 2024.

⁵⁰ V Miller, *Crime, Sexual Violence, and Clemency: Florida’s Pardon Board and Penal System in the Progressive Era* (UP of Florida, Gainesville 2000) 179.

⁵¹ *Fortune Ferguson v State of Florida*, Florida Supreme Court Records, Series 49: Case Files, 1825–2013, Box 15, Folder 11, State Archives of Florida, Tallahassee, FL.

⁵² While it is never explicitly stated where this nickname came from, I assume it is because Fortune Ferguson was a junior and shared his father’s name.

Immediately after the assault, she testified that Ferguson told her, 'If you won't tell your father and mother, I will give you five dollars Saturday when I get paid'.

The prosecution asked Patterson to give more explicit details about the assault, including how Ferguson grabbed her, whether he removed her clothing, what he did with his own clothing, and whether he penetrated her sexually in an effort to establish that the assault satisfied the Florida statutes related to rape and sexual assaults.⁵³ It was this last point that the prosecution asked for elaboration. Patterson was asked to stand up and indicate to the jury where he assaulted her and how long the assault lasted.⁵⁴ Upon cross-examination, Ferguson's defence attorney focused on whether his client sexually penetrated the victim. He asked her to clarify whether he 'push[ed] his private parts into [her]' or if he 'put his private parts against [her]'. She confirmed that he penetrated her. He asked her several times if Ferguson 'hurt her'. She replied affirmatively each time. The defence then focused on what happened after the assault occurred. When asked why Ferguson stopped the assault, Patterson replied, 'I told him to'. At that point, Ferguson apparently left. She then explained that after the assault, she waited alone at the house until her mother returned from the fields. When her mother arrived, she informed her of the assault.⁵⁵

Louise Patterson's mother, Callie Washburn, testified next and provided more evidence suggesting sexual intercourse had taken place, that her daughter was not a willing participant, and that Ferguson committed the act. After being sworn in, the prosecutor asked her a series of questions about where she lived and how long her family had lived in Alachua. She could not recall exactly when they moved, but suggested it was just under a year before the alleged assault occurred. The prosecutor then asked her to explain what she did on 4 June. According to Washburn, she stayed at the family's home for most of the day until dusk. At that point, a light rain started, and she and her husband went to the fields to put out potato slips. They were out of the house for about half an hour. She recalled that on her way back to the house, her daughter 'came up—she was pale—and says, "Mother I have got something to tell you, and it's awful bad and I hate to tell you"'. Washburn then recounted what her daughter told her about the alleged attack. She also stated that she made 'an examination of the child' and she concluded her daughter had been raped.⁵⁶

Defence Attorney Davis then proceeded with his cross-examination and, instead of probing for inconsistencies in the witness's recounting of events, seemed to provide her with another opportunity to further elaborate on the assault. He asked her to recount when she and her husband went into the fields. She replied that it was just after sundown. She also explained that they left the potato field together, but her husband went to pull corn for their horse. As such, her husband was not present when Louise Patterson told her mother about the alleged assault. However, she stated she alerted her husband as soon as she found out about the attack. He then asked how she was able to see on account of it being dark outside. She responded that she had a lamp inside. Davis then asked her whether a doctor had examined their daughter, which, according to Washburn, was done four days after the alleged assault. He concluded by asking her if she had seen the defendant before. She replied, 'I have seen him pass there in his car, and he has been there a few times to the store ... but I did not know his name; but that is the boy alright. I have seen him pass there in his car ... I

⁵³ Legal statutes often shaped questioning during rape cases, see Miller, "It Doesn't Take Much Evidence to Convict a Negro": Capital Punishment, Race, and Rape in Mid-20th-Century Florida' (2017) 21(1) *Crime, Histoire et Sociétés/Crime, History & Societies* 35–53; Miller (n 51) ch 5.

⁵⁴ *Fortune Ferguson v State of Florida* (n 52).

⁵⁵ *ibid.*

⁵⁶ *ibid.*

don't know the negroes' names or where they live, but that is the boy who drove that car. I know that.⁵⁷

Upon redirect examination by the prosecutor, the defence attorney raised an objection. When Adkins asked Washburn to elaborate on how she concluded a rape occurred, Davis objected. He stated, 'I object to the question and to the answer to it. She answered that it had appearance of having been penetrated.' The court replied that Washburn could in fact 'testify that from the appearance of the female organ there had been penetration by some instrument' but she could not testify that 'this penetration was by the male organ'. With that, the testimony of Callie Washburn concluded.⁵⁸

Dr D. C. Witt, the physician who examined Louise Patterson and determined that a sexual assault occurred, provided brief testimony. The bulk of the questioning focused on the kind of bruising he found on Louise Patterson. During cross-examination, Defence Attorney Davis once again raised the question of whether it could be definitively concluded that a 'male organ' was responsible for the bruising or if it could have been something else. Witt replied, 'It could have been possible, but conditions all indicated effects produced by the male organ ... All indications were such as produced by violence by a male organ'. He was asked one question on redirect examination about the bruising and was excused. At that point, satisfied that the five elements had been proved, the state rested its case.⁵⁹

Sixteen-year-old Fortune Ferguson, Jr was the sole witness for the defence. His testimony could not have taken more than a few minutes. His attorney asked him to explain what happened on 4 June. According to Ferguson, he was on his way home from work and stopped by the store for some cigarettes. He testified, 'I told her I wanted some cigarettes, and I says "How about my puppy?"' and she says she would have to wait until her mother came, and I asked where she was and she says she was in the field; and, about that time a car was coming and I drove off'. Davis asked him pointedly, 'You did not get out of your car?'. Ferguson insisted that he did not. Ferguson further stated that this occurred about 6:30 p.m. and that his interaction with Louise Patterson did not last for more than 'four or five minutes'. Finally, Davis told him to tell the jury anything else he wanted to say. The teenager simply replied, 'That's all I know'.⁶⁰

The state did not cross-examine Ferguson. The defence did not call any other witnesses. The case against Fortune Ferguson was turned over to the all-white jury.

Before the day was over, the foreman of the jury announced the unanimous verdict: guilty. Once convicted, the judge asked the 16-year-old defendant if 'he had anything to say why the sentence of the law should not be passed upon him'. According to the court document, he 's[aid] nothing sufficient'. At that point, Judge Long announced that Ferguson would be executed in the electric chair. The judge concluded the trial when he stated, 'May God have mercy on your Soul'.⁶¹ At that point, 'the prisoner was immediately carried out of the court room by the sheriff and his deputies'. Despite the fact that the governor determined the date of the execution, the local paper seemed convinced that punishment would be swift, stating that it 'will doubtless be carried out without delay'. The report stressed that Ferguson's attorney 'announced that there would be no appeal'.⁶²

Throughout the trial, newspaper reports reminded readers that both local and state authorities were in firm control of the process. The *Gainesville Sun* reported, despite 'some fear

⁵⁷ *ibid.*

⁵⁸ *ibid.*

⁵⁹ *ibid.*

⁶⁰ *ibid.*

⁶¹ *ibid.*

⁶² 'Ferguson Given Death Sentence for Assault of White Girl' *Daily Sun* (Gainesville, 17 June 1924).

of violence', Sheriff Ramsey and State Attorney Adkins 'handled the situation without any trouble whatever, and when the trial began there was not the slightest sign or movement on the part of anyone to indicate but [unintelligible] the court would [have] full jurisdiction' once the verdict and sentence were announced. Continuing their effort to eliminate the threat of extralegal violence after the conviction, the sheriff moved Ferguson to Jacksonville until his execution date.⁶³ These kinds of preventative efforts became more commonplace in the South during the early twentieth century as part of a broader effort to end lynch mob violence and proved fairly effective. One study found that between 1915 and 1941, there were a reported 762 lynchings, but another 1467 attempted lynchings were stopped.⁶⁴

The arrest and trial of Fortune Ferguson represented the due-process ideal that many opponents of the decentralized criminal justice system championed. Undoubtedly, the speed of the trial, the presence of sheriff's deputies at the trial, and the assurances from lawyers that no appeal would be filed were direct responses to the possibility of extralegal violence. Nonetheless, from the moment of arrest to the final sentencing, state and local officials repeatedly reaffirmed their command over the processes of justice in the revamped and more centralized criminal justice system in Florida. Far from losing authority in the shift to centralized, state executions, an in-depth look at trials like Ferguson's demonstrates the joint augmentation of authority that existed among state judges and prosecutors and local sheriffs and defence attorneys in the newly centralized criminal justice system.

SHERIFFS AND EXECUTIONS IN FLORIDA'S CENTRALIZED JUSTICE SYSTEM

Following the sentence, Governor Cary A. Hardee determined that Ferguson's execution would be held on 23 September 1924 and would take place at the state prison at Raiford. This was a significant change. For nearly a century, Florida sheriffs managed nearly all aspects of the execution. According to historian Vivien Miller, sheriffs 'oversaw the treatment of the condemned from their arrest through their execution, managed the construction and testing of the gallows, performed the execution, and supervised the disposal of the corpse'.⁶⁵ Yet, as part of the larger changes to the criminal justice apparatus that occurred in the 1920s in Florida, executions no longer took place in the counties where the crimes occurred. Ferguson's conviction became the first instance where the state would be able to display its new capacity for killing. Per the new law, the state officials would act as executioners in the newly constructed death chamber that housed the electric chair. This all occurred behind the walls of the revamped state prison at Raiford. Yet, importantly, this new process still allowed for county sheriffs' authority over much of the execution process, even as the location and nature of executions changed.

After 1924, the role of the county sheriff in the execution process looked different. No longer would county sheriffs conduct executions in front of public audiences in their home counties. In the new centralized criminal justice system, all executions occurred sealed off from the larger public and open to only a few selected individuals, typically prison guards and county officials. The actual execution would be held in a specialized execution room constructed in the state prison at Raiford. Most of the sheriff's duties involved housing condemned prisoners until their execution date and the transportation of the condemned to the state execution chamber. Because Ferguson was kept in Duval County jail in an effort to

⁶³ *ibid.*

⁶⁴ Eli Faber, *The Child in the Electric Chair: The Execution of George Junius Stinney Jr. and the Making of a Tragedy in the American South* (University of South Carolina Press, Columbia 2021) 46.

⁶⁵ Miller (n 3) 171.

avert potential lynchings, on 16 September, Sheriff Ramsey went to Jacksonville and transported Ferguson to the Raiford prison's 'death cell' where he would spend the last week of his life.⁶⁶

Once delivered to the state prison, state officials took possession of the condemned and were supposed to assume the role of executioner. The new state law determined that the prison superintendent, J.S. Blitch, would act as executioner *or* select someone else to assume the role.⁶⁷ In this case, Blitch allowed Sheriff Ramsey to be the executioner. This was, apparently, a role that Ramsey was all too comfortable with. One report claimed, 'During his sixteen years in office ha[d] sprung the trigger that meant death to ten criminals'. This, however, would be 'his first man [executed] by electricity'.⁶⁸ County sheriffs executing prisoners for the state remained the norm in Florida until 1941, when the state appointed an official executioner. As such, sheriffs continued to act as 'a curator of community authority' even as the state removed executions from the community.⁶⁹ Although the state officially assumed execution responsibilities in the centralized criminal justice system after 1923, the process continued to exemplify a collaboration between state and local officials instead of an outright assumption of responsibilities from the state at the expense of local officials, like sheriffs.

Once delivered to Raiford, Fortune Ferguson spent his days in a cell that adjoined the death chamber. It was here that the newly centralized justice system reclaimed control over the messages that execution days delivered. As opposed to providing venues for hundreds of spectators at the county seat, the new execution site allowed state authorities to select the audience and witnesses to the executions. First and foremost was the press. The state provided reporters some access to condemned prisoners like Ferguson prior to the execution. Newspapers across the state reported on his behaviour during his confinement. In ways that mirrored execution day rituals that occurred during public executions from the past but denied Black ministers and the condemned a public and uncontrolled venue, reporters assured readers that Ferguson recognized the majesty of the state and was prepared to die.⁷⁰ Ferguson, according to newspaper accounts, 'seem[ed] to accept his fate stoically. He says he has made peace with God and is ready to go.' Reports stated that he 'laughs and seemed perfectly satisfied to change his civilian clothes for the regulation stripes of the state pen He seemed not a bit worried or uneasy, any more than had he been entering his room at his mother's home.'⁷¹ Yet, Ferguson never confessed his guilt.⁷²

Newspaper reports also elaborated on how the new electric chair functioned and insisted that the new execution method was quick, painless, and clean.⁷³ According to one of the prisoners who was in charge of the installation of the electric chair, the current necessary to kill a normal person instantly needed to be over 1600 volts. More than that, he explained, 'is required for the current to break up and enter the blood cells. That amount, or less, would only horribly burn the victim ... and although it might produce death, would take considerable time.' The voltage that would be sent through Fortune Ferguson's body, according to the *Gainesville Daily Sun*, would be 2300 and 'within one tenth of a second produce absolute

⁶⁶ 'Sheriff Ramsey Will Deliver Ferguson to Death Cell Tomorrow' *Daily Sun* (Gainesville, 15 September 1924).

⁶⁷ 'Ferguson Is Ready for Death in Chair' *Palm Beach Post* (19 September 1924).

⁶⁸ *ibid.*

⁶⁹ Miller (n 3) 181–182.

⁷⁰ Trotti (n 4) 8–33; Stuart Banner, *The Death Penalty: An American History* (Harvard UP, Cambridge 2002) 16–52.

⁷¹ 'Ferguson Is Ready for Death in Chair' (n 68); 'Negro Rapist Says He Is Ready to Go; Ramsey to Execute' *Daily Sun*, (Gainesville, 18 September 1924).

⁷² 'Ferguson is Ready for Death in Chair' (n 68); 'Negro Rapist Says He Is Ready to Go' (n 72).

⁷³ Amy Louise Wood, 'Killing the Elephant': Murderous Beasts and the Thrill of Retribution, 1885–1930' (2012) 11(3) *Journal of the Gilded Age and Progressive Era* 405–44.

unconsciousness, and death [would be] painless'.⁷⁴ Coming on the heels of the widespread reports of fraud, violence, and chaos of the decentralized justice system, these kinds of accounts juxtaposed the majesty and dispassion of the newly introduced centralized criminal justice system with the violence and barbarism of what existed before it.

The shift to state-run executions in Florida did not ultimately result in the loss of influence in the criminal justice system for county sheriffs, but instead shifted how they functioned within it. When Florida introduced the electric chair as the new mode of execution, state officials seemingly appropriated the execution responsibility that used to belong to the county sheriffs.⁷⁵ While this occurred on paper in Florida, in practice, it looked a bit different. The centralized execution process represented a blending of state and local authority. Starting in 1924, executions took place behind the walls of the state prison at Raiford, and the state superintendent of prisons technically became the executioner in capital cases. But for the next decade and a half, the superintendent routinely delegated that responsibility to county sheriffs.

THE APPEALS AND THE EXECUTION

While the public focused on the impending execution, the Ferguson family took out a \$700 mortgage against their property and hired a local attorney to assist in the appeal.⁷⁶ All of the attention and excitement around the first electric chair execution in the state of Florida eventually came to naught. Mere days before the scheduled execution, a white attorney from Gainesville, F.Y. Smith, filed a Writ of Error petition with the Florida Supreme Court. As one account described, 'As [Ferguson] sat back for the volts to be sent through his body an order was received from the circuit judge granting him a temporary reprieve, pending an appeal to the supreme court'.⁷⁷

This appeal launched what became a multi-year crusade by Ferguson's family to spare his life. This effort proved ultimately unsuccessful but reveals two important realities about the justice system in Florida. First, in the context of the newly created centralized justice system, Ferguson's appeals process resulted in a solidification of this new system. Over three years, appeals courts at the state and federal level reaffirmed the authority of state judges to unilaterally make sentencing decisions without input from the jury. Second, while the appeals process delayed Ferguson's execution, it did not alter the outcome. During the appeals process, governors, appellate courts, and pardon boards all held the power to reverse sentences or issue commutations and pardons. These processes provided much leeway for state officials to exercise authority over the outcomes of the justice system and 'reproduce the trial process ... and modify the outcome [of a trial], showing mercy even in light of apparent community condemnation'.⁷⁸ Yet, Ferguson's appeals process reiterates how difficult success *could* be in the case of interracial rape convictions because they had to rely on state actors, from governors to Supreme Court justices, to intervene on their behalf. As historian Vivien Miller described, these men 'constituted a cadre of righteous, indignant, compassionate, and honorable men, who acted in the interests of the community, but were fully conscious of their duties toward fellow members of the propertied classes and established order'.⁷⁹ At the end

⁷⁴ 'Negro Rapist Says He Is Ready to Go' (n 72).

⁷⁵ Trotti (n 4) 128; Kotch (n 4) 19.

⁷⁶ Ken Driggs, 'A Current of Electricity Sufficient in Intensity to Cause Immediate Death: A Pre-Furman History of Florida's Electric Chair' (1993) 22 Stetson L Rev 1190.

⁷⁷ 'Martin to Sign Death Warrant' *New Smyrna Daily News* (31 December 1925).

⁷⁸ Dorr (n 45) 5–6; Kotch (n 4) 86, 84–110.

⁷⁹ Miller (n 51) 2.

of the appeals effort in 1927, Ferguson was executed, his family lost a son and brother and their economic independence, and the centralized justice system was stronger.

Because of the overhaul to criminal justice that just occurred, Ferguson's attorney sought a clarification on processes as part of his initial appeal to the Florida Supreme Court. In the writ of error filed with the court, attorney F.Y. Smith argued that Judge Long erred in several ways that challenged the state's authority in the newly created centralized criminal justice system. First, he alleged that Judge Long diminished the role of the local jury pool and improperly assumed authority that he did not completely have because he did not 'instruct the jury that a majority of their number could recommend the defendant to mercy, which recommendation would have the effect of reducing the penalty from death to life imprisonment'. In essence, the appeal challenged the authority of a state judge to unilaterally announce a sentence without considering the wishes of the locally constructed jury. Second, he alleged that execution via the new electric chair was cruel and unusual in defiance of the Constitution and out of compliance with Florida's statute on capital punishment.⁸⁰

On 27 June 1925, the Florida Supreme Court reaffirmed the authority of state judges in the sentencing process when it denied the petition for a rehearing and affirmed the ruling of the lower court.⁸¹ In response to the allegation that Judge Long had not properly instructed the jury, the court stated that this omission by the judge to the jury had no impact on the sentence because it was the judge, not the jury, that determined the sentence in Ferguson's case. The court stated, 'Even without a recommendation by the jury, it was in the court's discretion to sentence the defendant to life imprisonment. Clearly, therefore, there was no error in omitting to charge the jury in accordance with the statute referred to.' As for the issue of constitutionality of execution via electric chair, the court ruled, 'The sentence complies with every requirement of the statute ... Infliction of the death penalty by electrocution is not cruel or unusual punishment in the sense of the Constitutional inhibition'.⁸² While the jury determined the guilt or innocence of the accused, the Florida Supreme Court re-emphasized that the locus of power when it came to sentencing was with the state judge. While juries could make recommendations, in capital cases like Ferguson's, judges, not juries, made the final determination.

While the decision of the state supreme court was a blow to Ferguson's chances of avoiding execution, he still had options to exhaust. The next step in the process involved appealing directly to the State Pardon Board.⁸³ The case stayed with the board for over a year as they weighed the merits of Ferguson's appeal.⁸⁴ Several people wrote to the Governor of Florida and other members of the pardon board expressing either support for or opposition to commuting Ferguson's death sentence. This was a fairly common occurrence in cases such as Ferguson's. Clemency petitions often provided opportunities for state officials to reduce sentences based on circumstances surrounding rape cases and the reputations of the

⁸⁰ *Fortune Ferguson v State of Florida*, Florida Supreme Court Records, Series 49: Case Files, 1825–2013, Box 15, Folder 11, State Archives of Florida, Tallahassee, FL.

⁸¹ Fortune Ferguson's appeal case was cited in other state court cases that uphold the ability of state judges to sentence people convicted of offences other than murder to death without relying on a jury's sentence recommendation in Florida and elsewhere. For examples, see *Stephens v State* 787 So 2d 747 (Fla 2001); *Craig v State* 179 So 2d 202 (Fla 1965); *State v Chaney* 117 W Va 605 (W Va 1936); *Dimery v State* 338 A 2d 56 (Md 1975).

⁸² *Ferguson v State* 90 Fla 105, 105 So 840 (Fla 1925).

⁸³ The State Pardon Board Records that are housed at the state archives of Florida in Tallahassee are only accessible to researchers with explicit approval from the governor. At the time of this writing, my request has languished on the governor's desk for more than a year. This seems to be a pattern. At least two other scholars over the last twenty years have requested access only to be denied or ignored by the state. This unfortunate reality has blocked access to the records that would provide an important look into how supporters of Ferguson appealed to the Board. Nonetheless, I relied on Ken Driggs who had access to the files for an article he wrote in the 1990s.

⁸⁴ 'Fortune Ferguson is Denied New Trial by US Supreme Court' *Daily Sun* (Gainesville, 1 March 1927).

victims and the accused.⁸⁵ According to Ken Driggs, a law professor at Stetson University, who accessed the State Board of Pardons' files for an article written in the 1990s, Ferguson's attorney raised a few key issues in asking for a pardon: Ferguson's youth and mental capacity.⁸⁶ One letter in support of a pardon expressed concern because Ferguson 'did not seem very bright and I would hate to see him go to his death'. This was one of the first references to Ferguson's mental capacity. These two issues were ignored at trial and in the original appeal. Nonetheless, the State Board of Pardons refused to commute Ferguson's death sentence. As a result, on 30 September 1926, Governor Martin signed a total of nine death warrants, including Ferguson's. The Governor set the new execution date for 1 November 1926.⁸⁷

Across the South and in Florida, state governments used the pardon power to redress perceived wrongs or shortcomings of the normal operation of the justice system. Yet, as Vivien Miller argued, the pardon system in Florida essentially reflected the priorities and ideologies of the conservative, white, wealthy men who dominated the State Board of Pardons and the governor's office.⁸⁸ Despite these biases, it was not unfounded for African American defendants to receive commutations or clemency from the state in capital cases.⁸⁹ Yet, as the Ferguson case reiterates, state pardons were not easy to attain for condemned Black people. For people like Fortune Ferguson, the commutation of his sentence depended on the support of local judges, jury members, lawyers, and community members to support his application and on the benevolence of a cadre of conservative, upper-class white men in state government.⁹⁰

Following the decision by the State Board of Pardons, the US Supreme Court became Ferguson's last hope of avoiding execution. Ferguson's attorney filed an appeal with the US Supreme Court, where he reiterated the errors from the Florida Supreme Court appeal. He argued that the Florida Supreme Court erred in its decision because the time, place, and manner of execution were not properly articulated by the trial court, and that the judge erred by not instructing the jury that they could recommend mercy for the defendant which might have reduced the sentence from death to life imprisonment. Smith argued that this error was, in fact, a constitutional violation based on the Fourteenth Amendment's guarantee that 'No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law'.⁹¹ As such, Smith suggested that the Florida Supreme Court erred in its affirmation of Ferguson's conviction.

For the third time in as many years, Fortune Ferguson's execution date was stayed pending a response to his appeal. The Supreme Court heard oral arguments on 23 February 1927. Smith presented the case and 'insisted that [Ferguson's] constitutional rights had been evaded'. The state of Florida did not present an oral argument but instead submitted printed briefs. Justices provided some idea of how they would rule when they pressed Smith's argument and suggested 'that the appellant was not properly before the court'.⁹² After a brief oral argument, the justices took the appeal under advisement. Without much

⁸⁵ Dorr (n 45) 5–6.

⁸⁶ Driggs (n 77) 1190.

⁸⁷ 'Sheriff Will Take Negro to Raiford' *Gainesville Sun* (26 October 1926).

⁸⁸ Miller (n 51) 10–11.

⁸⁹ *ibid* 175–262; Kotch (n 4) 84–110.

⁹⁰ Miller (n 51) 53–92.

⁹¹ *Fortune Ferguson v State of Florida*, File 32306, Entry 21-A, Appellate Case Files, RG 267, Records of the Supreme Court of the US, US National Archives & Records Administration, Washington, DC.

⁹² 'Fortune Ferguson Case Reaches Oral Argument in Court' *Daily Sun* (Gainesville, 24 February 1927).

comment on their decision, the Supreme Court dismissed the case on 28 February 1927, citing a lack of jurisdiction.⁹³

Nearly three years after his arrest and conviction, the state of Florida executed Fortune Ferguson. Once again, newspaper reports elaborated on his demeanour as he was led to his death and emphasized that he was 'calm' and 'uttered a few last words to relatives, and said a short prayer'.⁹⁴ Prison officials, the Alachua County Sheriff and several deputies, and some newspaper reporters looked on when, at 2:30 p.m. on 27 April 1927, 'the current was turned on'. The brevity of the articles describing his execution painted a picture of a quick death. Yet, those reports also stated that it took 'five minutes' from the time the switch was tripped before 'the last spark of life sped from his body'.⁹⁵ Ferguson became the 14th man, and the 12th African American, executed in Florida's electric chair.⁹⁶

Reports of Fortune Ferguson's death via the electric chair circulated across the state. Newspapers covered his impending execution, documented the ritual of transporting him to the 'death chamber', followed by the emphasis on his calm demeanour prior to his death, and explained that at the moment of his death, he was surrounded by white local and state officials. While state executions sanitized the process, news coverage of these events provided clear indications of the dominance of the centralized justice system to a broader audience than those who attended the execution. Executions via the electric chair still embodied rituals that provided state and local officials the opportunity to showcase their authority over criminal justice in the new, more centralized justice system, without the violent and unruly spectacles that unnerved critics of lynchings and public executions.

The ramifications of Ferguson's arrest, conviction, appeals, and execution also took an immense toll on his family. In the context of the Jim Crow South, the Fergusons proved surprisingly successful prior to the arrest of their son. As of 1920, Fortune Ferguson, Sr and Hattie Ferguson owned a plot of land in Alachua County outright.⁹⁷ This was rare. By 1920, only around 1.72 per cent of Black people in the US owned farms outright.⁹⁸ In fact, that land allowed them to raise money to hire an attorney to push their son's appeal to the Florida and eventually the US Supreme courts. Additionally, witnesses repeatedly referenced the fact that Fortune Ferguson, Jr owned a car. It appears that the Fergusons were a fairly economically successful family in 1920. Yet, following the arrest, conviction, appeals, and execution of Fortune Ferguson, Jr, the Fergusons left Alachua County. Their reasons for doing so are unclear. Fortune Ferguson, Sr died in 1920, and that probably placed the family in a difficult financial situation. Having to mortgage their land to appeal their son's conviction probably exacerbated economic issues the family may have had. It is unknown where they went, but Hattie (Fortune's mother) and Serena (Fortune's sister) do not show up in the census data for Alachua County in 1930. Perhaps the stress of the execution and the apparent vitriol spewed their way from locals who threatened to lynch their family member pushed Hattie and Serena out of the area where their family had previously proved so successful. Scholars have long drawn connections between lynching and other forms of racial

⁹³ 'Fortune Ferguson Is Denied New Trial by US Supreme Court' *Daily Sun* (Gainesville, 1 March 1927); *Fortune Ferguson, Jr v The State of Florida*, 739 US (1926), Dockets of the Supreme Court of the United States, National Archives and Records Administration, Supreme Court Files, slide 75.

⁹⁴ 'Fortune Ferguson Is Sent to Death in Electric Chair' *Daily Sun* (Gainesville, 28 April 1927).

⁹⁵ *ibid.*

⁹⁶ Driggs (n 77) 1190.

⁹⁷ 1920 United States Federal Census, Enumeration District 7, Newberry, Alachua, Florida, Roll T625_214, Page 16A, digital image; see 'Fortune G. Ferguson' *Ancestry.com*.

⁹⁸ This is based on the total Black population in the US in 1920 of 10.4 million people and the total number of 'non-white' full owners of farmland in 1920. See United States Department of Agriculture, 'Black Farmers in America, 1865–2000: The Pursuit of Independent Farming and the Role of Cooperatives' (October 2022) 23, <[chrome-extension://efaidnbmnnnibpcajpcglclefindmkaj/https://www.rd.usda.gov/files/RR194.pdf](https://www.rd.usda.gov/files/RR194.pdf)> accessed 15 October 2024.

violence and the economic success of Black individuals or communities.⁹⁹ The plight of the Fergusons during the 1920s suggests that even as lynchings waned and the convict-lease system ended, the more centralized criminal justice system that developed in its wake continued to impose severe emotional and economic distress on Black communities. Although the structure of the system changed, the overall outcome remained the same.

The three-year appeal of Ferguson's conviction delayed that outcome but did not result in the commutation of his sentence. While some African Americans found success in challenging their convictions or received commutations from state officials, many, like Ferguson, did not. The consequences of those appeals, successful or not, often had ramifications well beyond that of the individual appealing his or her case. In the case of Fortune Ferguson, the appeals process seemingly put his family in a dire economic situation that forced them to leave the community. In terms of the justice system, the ruling of the Florida Supreme Court in his case served to solidify the new centralized system created in 1923. The ruling affirmed the power of state judges to unilaterally decide sentencing in capital cases without providing instructions to juries about their ability to recommend mercy.

CONCLUSION

The early twentieth century was an era of transition away from a decentralized criminal justice system that dispersed authority broadly to local officials, community members, and private contractors towards a centralized system focused on creating a formal system of criminal justice that relied on the collaborative relationship between state and local criminal justice officials.¹⁰⁰ In an effort to combat the criticisms and problems of the previous system, Florida underwent important changes in the 1920s by increasing efforts to combat lynchings, ending the convict-lease system and public executions, constructing a new state prison to conduct executions behind closed doors, and introducing the electric chair. In all, this new, more centralized system reflected a new era of state expansion into various facets of people's lives, taking place across the South during the Progressive Era.¹⁰¹

The process of state centralization of the justice system occurred across the South in the early twentieth century.¹⁰² As a result of this process, local criminal justice officials, like sheriffs, did not necessarily see their role as arbiters of justice erode as the state centralized its control over the justice system. Instead, as the case of Fortune Ferguson, Jr illustrates, state and local officials worked together within the centralized justice system. Following the commission of a crime, local and state officials collaborated in the investigation, arrests, trials, sentences, and, in this case, the execution, in ways that solidified their collective control over criminal justice. The case of Fortune Ferguson, then, is indicative of the growing presence of the formal criminal justice system, including the police, prosecutors, judges, juries, and prisons, as a means of maintaining Black subordination in the Jim Crow South that was less open to criticism than the decentralized system that preceded it. It demonstrated the incredible power of the white political leaders to recraft a justice system that offered the patina of progressive change while still delivering outcomes that helped maintain the racial inequities that formed the basis of the Jim Crow system.

⁹⁹ Tolnay and Beck (n 12); Brundage (n 10); Karlos K Hill, *The 1921 Tulsa Race Massacre: A Photographic History* (University of Oklahoma Press, Norman 2021); Scott Ellsworth, *Death in a Promised Land: The Tulsa Race Riot of 1921* (Louisiana State UP, Baton Rouge 1992).

¹⁰⁰ Pfeifer (n 11); Trotti (n 4); Kotch (n 4).

¹⁰¹ Amy Louise Wood and Natalie J Ring, 'Introduction' in Wood and Ring (n 5) 4–6; William A Link, *The Paradox of Southern Progressivism: 1880–1930* (University of North Carolina Press, Chapel Hill 1992).

¹⁰² Kotch (n 4); Trotti (n 4); Miller (n 51); Dorr (n 45); Brandon T Jett, *Race, Crime, and Policing in the Jim Crow South: African Americans and Law Enforcement in Birmingham, Memphis, and New Orleans, 1920–1945* (Louisiana State UP, Baton Rouge 2021) 17–46; Wood and Ring (n 5).

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